

Draft Resolution

Topic: Regulation of De Facto and De Jure Territories to Promote Stability and Consistency in International Law

Sponsors: Hashmite Kingdom of Jordan

Signatories: Syrian Arab Republic, Saudi Arabia, Qatar, Lebanon, Republic of Turkey, French Republic, Russian Federation

The General Assembly,

Recalling its previous resolutions concerning territorial integrity, sovereignty, and the principles of international law, particularly the United Nations Charter,

Recognizing the complexities and disputes arising from de facto and de jure territorial claims, which often lead to conflict, instability, and human suffering,

Expressing Concern over the inconsistent application of international law and principles by some Member States, particularly in the context of the United States' support for territories occupied by Israel while opposing Russia's invasion of Ukraine,

Stressing the importance of a uniform and fair approach to territorial disputes to uphold the credibility and integrity of international law,

1. Calls for the establishment of an International Commission on Territorial Regulation (ICTR) under the auspices of the United Nations to address issues related to de facto and de jure territories;

2. Mandates the ICTR to perform the following functions:

- **Assess and categorize territories** based on de facto and de jure status,
- **Develop criteria and guidelines** for the regulation and management of these territories,
- **Facilitate dialogue and negotiations** between parties involved in territorial disputes,
- **Monitor and report** on the situation in disputed territories and recommend measures to ensure stability and adherence to international law;

3. Proposes the following laws and regulations for the management and regulation of de facto and de jure territories:

- **Territorial Status Assessment Law:** Establishes a clear framework for assessing and categorizing territories based on historical claims, control, and recognition by the international community,

- **Conflict Prevention and Resolution Law:** Provides mechanisms for peaceful negotiation, mediation, and arbitration of territorial disputes,
- **Human Rights Protection Law:** Ensures the protection of human rights and the provision of humanitarian aid in disputed territories, regardless of their de facto or de jure status,
- **Sovereignty and Non-Interference Law:** Reinforces the principles of sovereignty and non-interference in the internal affairs of states, while providing exceptions for international intervention in cases of severe human rights violations,
- **Economic and Development Assistance Law:** Regulates the provision of international aid and development assistance to disputed territories, ensuring that such support does not exacerbate conflicts or undermine sovereignty;

4. Calls upon Member States to adhere to a consistent and fair application of international law in dealing with territorial disputes, avoiding double standards that undermine international order and justice;

5. Recommends the imposition of appropriate diplomatic and economic measures against any Member State that is found to be acting inconsistently with international law and principles, as determined by the ICTR;

6. Urges the international community to support the ICTR with necessary financial and technical resources to effectively carry out its mandate;

7. Requests the Secretary-General to submit an annual report on the implementation of this resolution, the activities of the ICTR, and the status of disputed territories to the General Assembly;

**8. Decides to remain actively seized of the matter until a comprehensive and lasting solution to territorial disputes is achieved.;*

9. Application Of HRC Resolution S-28/1 which include:-

Condemnation of Israel's Use of Force: The Council condemns the disproportionate and indiscriminate use of force by Israeli occupying forces against Palestinian civilians, particularly during peaceful protests in Gaza, violating international humanitarian and human rights laws;

- **Call for Immediate Cessation of Violence:** The Council calls for an immediate end to all attacks, incitement, and violence against civilians in the Occupied Palestinian Territory;
- **Emphasis on Peaceful Demonstrations:** All parties are urged to ensure future demonstrations remain peaceful and avoid actions that could endanger civilian lives;
- **Demand to End Gaza Closure:** The Council demands that Israel end its illegal closure of Gaza, viewed as collective punishment, and open crossings for humanitarian aid, commercial goods, and persons in need of medical attention;

- **Independent Commission of Inquiry:** An independent international commission of inquiry is to be urgently dispatched to investigate alleged violations of international law in the Occupied Palestinian Territory, especially Gaza, from the protests beginning on 30 March 2018. This includes establishing facts, identifying those responsible, and making recommendations for accountability;
- **Cooperation with Inquiry:** Israel and other relevant parties are called upon to fully cooperate with the commission of inquiry. The United Nations bodies are also requested to assist the commission;
- **Continued Engagement:** The Council decides to remain actively engaged with the matter;